Brightline Freight - Master Services Agreement

Standard terms for business customers. Edition 4, January 2026. Brightline Freight Ltd, company number BF-228190, registered office 14 Depot Road, Corlinden, Verdania.

1. Scope

This agreement covers the collection, carriage, storage and delivery of goods by Brightline for the customer, and any related services such as customs brokerage. The rate card in force on the collection date sets the prices.

2. Customer obligations

The customer must pack goods so that they can withstand normal handling, label each package with the delivery address and the consignment number, and declare the correct weight, dimensions and contents. Dangerous goods must be declared in advance as described in the Dangerous Goods Instructions.

3. Liability

3.1 Brightline is liable for loss of or damage to goods from collection until delivery.

3.2 Brightline's liability is limited to 8.33 Special Drawing Rights per kilogram of gross weight of the goods lost or damaged, and in any case to €50,000 per consignment.

3.3 Brightline is not liable for indirect loss, loss of profit, loss of market, or delay, except that for proven delay we refund the freight charge of the delayed consignment.

3.4 Higher protection is available through Brightline Cover (clause 9).

4. Claims

4.1 Visible damage must be noted on the proof of delivery and confirmed in writing within 7 days of delivery.

4.2 Damage that was not visible on delivery must be reported in writing within 14 days of delivery.

4.3 Claims for total loss must be made within 60 days of the collection date.

4.4 Brightline does not consider a claim until the freight charges for the consignment have been paid; the claim amount may not be deducted from them.

5. Prices and payment

5.1 Invoices are issued weekly and are payable within 30 days of the invoice date.

5.2 On late payment Brightline may charge interest at 8 percentage points above the reference rate of the Central Bank of Verdania, and a fixed recovery fee of €40 per invoice.

5.3 Brightline may change the rate card by publishing a new version at least 30 days before it applies.

6. Term and termination

6.1 The agreement runs for a minimum term of 12 months and then continues until terminated.

6.2 Either party may terminate it after the minimum term by giving 90 days' written notice.

6.3 Either party may terminate it at once if the other commits a material breach and does not remedy it within 30 days of notice.

7. Force majeure

Neither party is liable for failure to perform caused by events beyond its reasonable control, including extreme weather, road closures ordered by an authority, strikes outside Brightline and pandemics.

8. Lien

Brightline has a general lien on goods in its possession for all unpaid amounts owed by the customer.

9. Brightline Cover

The customer may insure goods for their declared value by asking for Brightline Cover when booking. The price is 0.35% of the declared value, minimum €12 per consignment. Cover is not available for cash, jewellery, works of art or live animals.

10. Data protection

Each party complies with data protection law. Brightline uses delivery contact details only to perform the delivery and to send tracking messages.

11. Governing law

This agreement is governed by the law of Verdania. The courts of Corlinden have exclusive jurisdiction.

12. Contacts

Account management: +00 31 606 3977. Claims: claims@brightline.example. Disputes: legal@brightline.example.

13. General provisions

Provision 1. Customers with accessibility needs can ask for this document in large print, audio or another format at no extra cost.

Provision 2. We may appoint agents and subcontractors to perform any part of this agreement. We remain responsible for what they do on our behalf.

Provision 3. If there is a conflict between a schedule and the main text, the schedule applies for the matter it covers and the main text applies for everything else.

Provision 4. Any change to this document must be agreed in writing, except where it says that we may change a part of it by publishing a new version.

Provision 5. If there is a conflict between a schedule and the main text, the schedule applies for the matter it covers and the main text applies for everything else.

Provision 6. Headings in this document are for convenience only and do not affect its interpretation. Words in the singular include the plural and the other way round.

Provision 7. References to a law include that law as amended or re-enacted from time to time and any regulation made under it.

Provision 8. Each party will act in good faith and will cooperate reasonably with the other to give effect to the purpose of this document.

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Provision 10. Nothing in this document limits any right that cannot be limited under the law that applies to it. If a provision is found invalid, the rest remains in force.

Provision 11. Staff are trained to explain these terms in plain language. If anything is unclear, ask for an explanation before you rely on your understanding of it.

Provision 12. Where an amount is stated including tax, the tax rate in force on the date of the invoice applies, and a change in the rate changes the amount accordingly.

Provision 13. If there is a conflict between a schedule and the main text, the schedule applies for the matter it covers and the main text applies for everything else.

Provision 14. We process personal data as described in our privacy notice. We keep records only for as long as we need them for the purposes stated there.

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Provision 16. Headings in this document are for convenience only and do not affect its interpretation. Words in the singular include the plural and the other way round.

Provision 17. The parties will try to resolve any dispute by discussion between senior representatives before starting formal proceedings.

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Provision 22. Copies of earlier versions of this document are kept in the archive and can be requested. They apply only to the period stated on their cover.

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Provision 33. This document and the documents it refers to are the whole agreement between the parties on its subject and replace any earlier understanding.

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Provision 36. A failure or delay in exercising a right is not a waiver of that right, and a single or partial exercise does not prevent any further exercise of it.

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Provision 38. We process personal data as described in our privacy notice. We keep records only for as long as we need them for the purposes stated there.

Provision 39. Where this document refers to a person, that includes a company, a partnership and any other body with legal personality, and their lawful successors.

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